

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

September 12, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: COUNCIL PRESIDENT - Dr. Rinne; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson (arriving at 6:08 p.m.), Mr. Spiker and Mr. Valdez. Absent: Mr. Collins and Mayor Kaysen. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. In the absence of Mayor Kaysen, Council President Rinne, Acting Mayor, chaired the meeting. [City Clerk's note: Council President Rinne, as Acting Mayor and meeting chair, exercised his option to vote or not vote, as entitled by state statute, on agenda items before the governing body for action.] The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present with the exception of President Rinne who did not vote.

[CA] Minutes from Regular Meeting of the Governing Body on August 22, 2011. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present with the exception of President Rinne who did not vote.

President Rinne opened a public hearing to receive comments and input for a transfer of location for a retail liquor license application filed with the City Clerk's Office for Cloud 9, Inc. d/b/a Cloud 9 Liquorland, 1958 Dell Range Boulevard (Suite C), Cheyenne, Wyoming. Tom Kingham, owner of Cloud 9, Inc., explained the current status of the liquor license, which has been "parked" and not in operation, and his request to relocate the license to open a package liquor store only business within a vacated building area in the strip mall in the Sam's Club south out parcel area. There being no further comments or input and purpose of the hearing having been met, President Rinne closed the hearing and referred the application to the Finance Committee.

An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential Established and P Public Districts to PUD Planned Unit Development District for Lots 1 and 2, Block 1, and Lot 1, Block 2, Hospital Center, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located between E. 22nd and E. 25th Streets, east of Warren and west of Evans Avenues) -- referred to Public Services Committee (sponsor - Mr. Collins).

An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from A-2 County Agricultural District to HI Heavy Industrial District for a portion of Section 1, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming, also to be known as Lot 1, Block 1, GDC Subdivision (located south of Interstate 80, west of Campstool Road) -- referred to Public Services Committee (sponsor - Mr. Collins).

An Ordinance amending Section 5.44.030(C), Contractor Licensing Board - Membership - Term, of Chapter 5.44, Contractors, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, relating to the removal of certain City officials as ex-officio members of the Contractor Licensing Board -- referred to Public Services Committee (sponsor - Mr. Pierson).

An Ordinance amending Section 15.04.020(A), Building Code Board of Appeals, of Chapter 15.04, General Provisions, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, relating to the removal of certain City officials as ex-officio members of the Building Code Board of Appeals -- referred to Public Services Committee (sponsor - Mr. Pierson).

Resolution determining that the sale of real property owned by the City of Cheyenne, Wyoming would benefit the economic development of the City pursuant to Wyo. Stat. § 15-1-112(b) and authorizing the Mayor to sign a Purchase and Sale Agreement and a Development Agreement with Menard, Inc. for the sale of 23.87 acres of City-owned land platted as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of the intersection of Windmill Road and Dell Range Boulevard, Cheyenne, Wyoming) (Postponed from 08/22/2011). Scott Nuttelman, Menard, Inc., requested a two week postponement as they are still working with staff members and the County to finalize the Development Agreement and Purchase and Sale agreement, and the pending release of claim of property interest previously asserted by the County. In addition, he noted that given the magnitude of the proposed sale, and as there were three members of the governing body absent at the meeting, final consideration of the resolution by the entire Council was preferable. Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Mr. Brown. Ms. Broyles moved to postpone for two weeks (to Sept. 26, 2011), seconded by Mr. Brown. [City Clerk note: Mr. Pierson joined the meeting.] Comments included reference to a recent City Attorney memo requesting a two week postponement, and postponement enabling more members of the governing body to be present to vote on the resolution. Motion to postpone failed (due to a tie vote). Voting "yes" -- Ms. Ash, Mr. Brown, Ms. Broyles and Mr. Pierson. Voting "no" -- Mr. Allen, Mr. Spiker, Mr. Valdez and President Rinne. Discussion on the main motion included the following topics: Valuation of the property relative to proposed purchase amount and the City's return on investment; proposed Menard business that would be located off one of the busiest streets (i.e.: Dell Range Blvd.) in the state; current per square foot value of properties being developed for industrial vs. commercial use; elements affiliated with economic development issues, including local government's role relative to business competition; Menard's project value to the community; retaining land for additional park, athletic and/or open space purposes; Menard site plan relative to the number of parking spaces and effect on Cahill Park events and sports activities; property as a long-term City asset; concern with marketing process involving proposed sale of the property; current economic market conditions affecting property values; community need for a girl's softball field; budgetary concerns involving parks and recreation facilities and maintenance issues, and comparison issues involving economic development incentives for the "downtown hole" (fire site)

vs. the proposed Menard's project. During discussion, and in response to inquiries, Rick Parish, Director of Parks and Recreation, reviewed the history time frame of when the property was initially proposed to be sold; explained removal of the land use restriction by the Veterans Administration and Land and Water Conservation Section 6(f) boundary designation changes involving the property and other parks and recreation areas, noting the sale will assist with financial funding for enhancements, including remodeling and refurbishing, of existing parks and recreational facilities within the City. He provided information on property appraisals; reviewed and discussed a list of department projects and needs that could benefit from the money received from the sale of the property, and explained infrastructure that Menard's project would provide at the site, including a Greenway tunnel, parking lot, sidewalk and bike path landscaped with trees, and an approach for a possible future rec center in the vicinity as well as installation of water and sewer access to the area. Upon further inquiry, Mr. Parish reviewed estimated parking spaces that will be available through the Menard development that could potentially provide overflow public parking for nearby athletic facilities. Motion to adopt failed. Voting "yes" -- Ms. Ash and Mr. Pierson. Voting "no" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Spiker and Mr. Valdez. President Rinne did not vote.

Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated in portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located between Interstate 25 and Clear Creek Parkway, south of West College Drive). Reporting for Public Services Committee, Mr. Brown moved to adopt, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present with the exception of President Rinne who did not vote. (#5309)

[CA] Resolution authorizing the City of Cheyenne, a jurisdiction within Laramie County, Wyoming, to participate in a Multi-jurisdictional Hazard Mitigation Plan (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried. (#5310)

[CA] Resolution designating the Director of Purchasing as agent for the City of Cheyenne for the purpose of organizing and holding a surplus municipal property auction at a time convenient for the City. Motion (per Consent Agenda) carried. (#5311)

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board to accomplish the West Pershing Boulevard Sewer Main Project from Pioneer Avenue to Interstate 25. Motion (per Consent Agenda) carried. (#5312)

[CA] Resolution authorizing submission of an Energy Efficiency and Conservation Block Grant application to the State Energy Office to continue energy efficient upgrades to Fire Stations Number 2 and 6 (Energy Development fund) -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Country Homes Subdivision, 2nd filing, a replat of Lots 7 & 8, Block 3; Lots 2-7, Block 4; Lots 1-3 & 6-8, Block 5; and Lots 1, 2, 7 & 8, Block 6, and a portion of Grape Street, Country Homes Subdivision, and a portion of Tract 5 of the Allison Draw Flood Control Project, Laramie County, Wyoming (located north of and adjacent to Citrus Street, between Division and Pine Avenues) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for JL Ranch IV, a replat of Lot 28, Block 3, JL Ranch, Cheyenne, Wyoming (located north of and adjacent to Alex Ranch Road, east of Taggart Drive)" -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Frontier North, 3rd Filing, a replat of a portion of Lot 2, Block One, Frontier North, 2nd Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Frontier Mall Drive and Prairie Avenue) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing submission of an application to the United States Department of Treasury, for funding through the State Small Business Credit Initiative to increase access to capital in Cheyenne, Wyoming and surrounding area -- referred to Finance Committee (sponsor - Mr. Spiker).

[CA] Resolution authorizing the City of Cheyenne, through the City Attorney's Office, to commence condemnation proceedings to obtain real property located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project (Phase 4) (2003-2006, 2007-2010 1% Sales Tax)" -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Resolution repealing Resolution 5246; Creating a new resolution establishing golf course user fees and categories for the Airport Golf Course and Kingham Prairie View Golf Course; and providing for the division of revenues from said fees to be deposited between the General and Capital Improvement Fund -- referred to Finance Committee (sponsors - Mr. Brown, Mr. Pierson).

[CA] Preliminary Plat for GDC Subdivision, portions of Section 1, T.13N., R.66W., Section 6, T.13N., R.65W., Section 31, T.14N., R.65W., and Section 36, T.14N., R.66W., 6th P.M., and a replat of a portion of the right-of-way of HR Ranch Road, JL Ranch, Cheyenne, Wyoming (located south of Interstate 80, west of Campstool Road) -- referred to Public Services Committee.

[CA] Contract between the City of Cheyenne, Cheyenne Police Department and the Cheyenne Regional Airport Board for law enforcement services. Motion (per Consent Agenda) carried. (#5729)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for general education students and students with disabilities for the 2011 - 2012 school year. Motion (per Consent Agenda) carried (revenue to the City \$168,190.00). (#5730)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming for juvenile probation services. Motion (per Consent Agenda) carried (revenue to the City \$48,000.00). (#5731)

[CA] Agreement between the City of Cheyenne, Transit Division, and NextMedia Outdoor, Inc., for the purchase of advertising space on Cheyenne Transit buses. Motion (per Consent Agenda) carried. (#5732)

[CA] Juvenile Diversion and Transitional Services Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, Division of Juvenile Services -- referred to Finance Committee.

Employment Contract between the City of Cheyenne, Parks and Recreation Department, and Tim Grote for Greenway construction project management services (Greenway 1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee. Mr. Valdez advised the item was discussed under other items for the agenda at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Valdez moved to approve in an amount not to exceed \$37,676.94, seconded by Ms. Ash. Rick Parish, Director of Parks and Recreation, requested the item be postponed for two weeks (to Sept. 26, 2011) to allow further review and clarification involving the contract. Mr. Pierson moved to postpone for two weeks (to Sept. 26, 2011), seconded by Mr. Brown. Motion to postpone carried. Voting "yes" -- all members of the governing body present with the exception of President Rinne who did not vote.

[CA] Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and Clarion Associates, LLC, for a Land Use and Transportation Update to PlanCheyenne, the Cheyenne Area Master Plan (Federal MPO funding) -- referred to Finance Committee.

[CA] Use Agreement between the City of Cheyenne, Engineering Department, and 360networks (USA) inc., for limited use of the public right-of-way for the installation of fiber optics and setting a fee -- referred to Finance Committee.

[CA] Amendment No.1 to Contract No. 5566, Juvenile Housing Agreement, between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC, to extend the agreement term for an additional six months. Motion (per Consent Agenda) carried. (#5566)

[CA] Contract Modification No. 1 to Contract No. 5414 between the City of Cheyenne, Sanitation Division, and Clean Harbors Environmental Services, Inc. for hazardous waste disposal services at the Cheyenne Household Hazardous Waste Facility -- referred to Finance Committee.

Consideration of Bid #R-1-12 for furnishing and installing one new wireless bus lift with four jack stands for the City of Cheyenne Transit Division. Upon inquiry, Joe Dougherty, Transit Director, stated the bus lift system will provide a safer working condition for Fleet Maintenance mechanics. He explained that subsequent to the Finance Committee meeting, all Federal assurance documents had been located and are signed as required. Mr. Valdez advised a condition was included in the motion to accept the bid at the Finance Committee, requiring all signatures be obtained regarding Federal certifications of acceptance; however, since the meeting it had been advised that the documents with required signatures are in place and the condition is no longer necessary. Mr. Valdez moved to accept the bid from Ace Equipment & Supply Co., Henderson, CO, in an amount not to exceed \$36,250.00, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present with the exception of President Rinne who did not vote.

[CA] Consideration of Bid #R-10-12 for furnishing and installing four steel compaction wheels on a caterpillar at the City Landfill. Motion (per Consent Agenda) carried (Wyoming Machinery, Cheyenne, amount not to exceed \$82,857.00).

[CA] Consideration of Bid #M-5-12 for purchasing a bulk ice control product for the Public Works Department for use on City streets (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-3-12 for a contract between the City of Cheyenne and Naranjo Civil Constructors, Inc., Greeley, CO, for the Safe Routes to School, Arp Elementary Connector Project (Greenway 1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-7-12 for furnishing eight new 2011-2012 ¾ ton quad cab or crew cab, 4x4 trucks, for the City's Parks, Recreation, Forestry, Street & Alley, and 1% Concrete Divisions (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-9-12 for furnishing ammunition for the Cheyenne Police Department -- referred to Finance Committee.

[CA] Community Facility Fees Report for Fiscal Year ending June 30, 2011 -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held September 26, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Concord Neighborhood Corporation d/b/a Applebee's Neighborhood Grill and Bar, 1401 Dell Range Boulevard, Cheyenne, Wyoming (License currently held by Wild West Apple Ventures Ltd., LLC d/b/a Applebee's Neighborhood Grill and Bar, 1401 Dell Range Boulevard, Cheyenne, Wyoming).

Announcement was made that the Laramie County Republican Party will be sponsoring a Calcutta to be held Friday, September 30, 2011 beginning at 6:00 p.m. at the Old West Museum, 4610 Carey Avenue, Cheyenne, Wyoming, in conjunction with the Red State Rendezvous (proceeds to benefit Laramie County Republican Party).

There being no further business to come before the governing body, President Rinne adjourned the meeting at 7:03 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
Sept. 23, 2011